bility for the demolition. Aghast, 26 of the homeless residents approached Gujarat High Court in June. The SMC submitted before the court that its staff had gone only to mark a 40-foot boundary line laid down in 1980, that the corporation had no role in the demolition, and that it had neither summoned nor requisitioned the Special Operations Group personnel present.

This spectre of an apparently uncaused event—with not very abstract results—haunted the case. Katargam BJP MLA, Vinu Mordia, testified that officials of SMC's Central Zone had told him no demolition order existed, then asked aloud who had brought the JCBs and Hitachi excavators. SMC commissioner M. Nagarajan said the land belonged to a private developer who had requested the demarcation, and may have deployed the machinery.

None of the submissions explained the presence of SMC and police personnel during the demolition, and the court took strong exception to what it prima facie seemed to be—the commandeering of official machinery for private interests. The bench, headed by Justice Nikhil Kariel, had a series of questions and observations. It asked Torrent Power to explain who had instructed it to cut power to the demolished homes, and pressed the police on why no FIR had been registered. It noted that the police commissioner had taken no action against SOG personnel who were present for a mere demarcation and should have stopped the demolition rather than watching it.

NO ONE COULD JUSTIFY THE PRESENCE OF SMC AND POLICE OFFICIALS AT THE "COMPLETELY ILLEGAL" DEMOLITION. DOES ANY LAW EXIST IN THE COUNTRY, ASKS HC



ANI

SHAKY GROUND Residents of demolished houses, Katargam, Surat, Jun. 10

After the hearing, five junior engineers found themselves suspended, without their exact role being cited. No action has been taken yet against any police officer. One of the five engineers, Sujal Prajapati, contested his suspension and submitted screenshots of WhatsApp instructions given by Nagarajan to 'complete the demolition'.

In mid-July, as the court's language hardened, the government announced an internal inquiry. But the bench was trenchant in its censure. Describing the demolition as "completely illegal", it asked whether any law exists in this country, called the departmental inquiry a drama to shield senior officers, and said compensation should not come from the treasury but from the officials responsible. In mid-August, Nagarajan was moved out of Surat and posted to the education department's Samagra Shiksha Abhiyan as project director. For weeks before this, the court had kept up an unrelenting fusillade, asking why senior officers from the SMC and police could remain in their posts while a state-ordered inquiry into their conduct was pending, calling it "nothing but a farce".

UPTURNED LIVES

The displaced residents of Nasirnagar, most of them daily-wage labourers, are still living in the temporary shelter they were given in an SMC community hall. "Many had lived in Nasirnagar for over three decades. Their biggest concern was recovering not their belongings but their identity documents from the rubble," said Mujahid Nafees, convenor of the Minority Coordination Committee, an NGO supporting the victims in the judicial process. He explains that the land in question is not even government property and it was a local builder who needed the space cleared for a commercial project.

The government has proposed allotment of houses under the EWS scheme, but after a payment of Rs 4-5 lakh—the amount typically collected from all applicants. The court has orally remarked that the victims should be allotted the house gratis since their dwellings were illegally demolished.

While the final order is awaited, the judiciary's intervention may have partly redeemed the situation. Else, the incident had exposed the thin line between bulldozer justice and the bulldozing of justice. Not a surprising evolution for a method that's meant to bypass the judicial system. ■